

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal under Article 138 and 154P of Constitution of Democratic Socialist Republic of Sri Lanka and Section 9 and 10 of the High Court of Provinces (Special Provisions) Act No. 19 of 1990.

Court of Appeal Case No.
CA/PHC/0075/2018

High Court of Negombo:
HCW/69/2016

1. Wickramarathna Ranasingha,
General Secretary,
Katunayaka-Seeduwa Urban Tax Payers
People's Association,
No.21/28, Wasana Uyana,
Mukalangamuwa, Seeduwa.
2. Dayananda Ariyapperuma,
Special Investigation Secretary,
Katunayaka-Seeduwa Urban Tax Payers
People's Association,
No.21/28, Wasana Uyana,
Mukalangamuwa, Seeduwa.

Petitioners

Vs.

1. K.A.C.P. Pushpakumara;
Secretary and Exercising Officer of Powers,
Duties and Functions of the Council,
Katunayaka-Seeduwa Urban Council,
Kotugoda Road, Seeduwa.
2. Commissioner of Local Government Local
(Western Province)
Government Department,
No. 02, Cambridge Terrace,
Colombo 07.

Respondents

And now

1. Wickaramarathna Ranasingha,
General Secretary,
Katunayaka-Seeduwa Urban Tax Payers
People's Association,
No.21/28, Wasana Uyana,
Mukalangamuwa, Seeduwa.
2. Dayananda Ariyapperuma,
Special Investigation Secretary,
Katunayaka-Seeduwa Urban Tax Payers
People's Association,
No.21/28, Wasana Uyana,
Mukalangamuwa, Seeduwa.

Petitioners- Appellants

Vs.

1. K.A.C.P. Pushpakumara,
Secretary and Exercising Officer of Powers,
Duties and Functions of the Council,
Katunayaka-Seeduwa Urban Council,
Kotugoda Road, Seeduwa.
- 1A. S.A.K.N. Indrajith
Secretary,
Katunayaka-Seeduwa Urban Council,
Kotugoda Road, Seeduwa.
2. Commissioner of Local Government
(Western Province)
Local Government Department,
No. 02, Cambridge Terrace,
Colombo 07

Respondents- Respondents

Factual Background

By letter dated 05.10.2015 marked **P4**, the Assistant Commissioner of Local Government, Western Province, *inter alia* has informed the 1st Respondent, Secretary of the Katunayake-Seeduwa Urban Council, who was exercising the powers and discharging the duties and functions of the Council, that two persons identified as Sarathchandra and Henry, who were not lessees of the Urban Council, were in forcible occupation of two shops constructed upon the “Pola” land belonging to the Council without payment of rent.

The Assistant Commissioner observed that such occupation amounted to a misappropriation of property belonging to the Urban Council. Accordingly, had recommended that steps be taken to recover rent from the said occupants and, in order to avoid unfairness to the other traders, that further steps be taken to relocate all traders occupying the “Pola” land to the new shopping complex.

It is very clear from the P4 letter itself that directions given therein are recommendations and not orders. Further P4 letter appears to address a number of issues with regards to irregularities happening in the Katunayake-Seeduwa Urban Council as the heading of the letter suggests and is not expressed with sufficient clarity to permit a precise interpretation.

The 2nd Respondent, who appears to be responsible for the **P4** letter, failed to appear before this Court despite notice having been sent by registered post on several occasions. As the notices had not returned undelivered, the matter proceeded in his absence.

Proceedings Before the Provincial High Court

On 03.03.2016, the Appellants invoked the writ jurisdiction of the Provincial High Court, sought *inter alia*:

- a) a writ in the nature of *certiorari* quashing the alleged decision of the 1st Respondent to act contrary to the recommendations contained in P4; and
- b) a writ in the nature of mandamus compelling the 1st Respondent to act in accordance with those recommendations.

Upon the completion of pleadings, the learned High Court Judge, by judgment dated 27.03.2018, observed that the Appellants had failed to produce any evidence of the decision allegedly made by the 1st Respondent contrary to P4.

In the absence of the impugned decision, the learned High Court Judge found that the Court was unable either to consider the grant of *certiorari* or to determine which, if any, of the several recommendations contained in P4 had been contravened. The learned Judge also took into account the material indicating that some of the recommendations contained in P4 had already been implemented. The application was accordingly dismissed.

Grounds of Appeal

In the Petition of Appeal, the Appellants seek to impugn the judgment of the learned High Court Judge on the following grounds:

- a) that the judgment is contrary to accepted legal principles;
- b) that the learned High Court Judge failed properly to analyse the material facts;
- c) that the learned High Court Judge failed properly to evaluate the documents placed before Court; and
- d) that the learned High Court Judge failed to apply the relevant principles of administrative law.

These grounds have been formulated in broad and general terms. The Appellants have neither identified the particular factual or legal errors allegedly committed by the learned High Court Judge nor demonstrated, by reference to the material placed before Court, any basis upon which those grounds could be sustained.

Analysis

The principal question arising for determination is whether the learned High Court Judge erred in refusing the relief sought by the Appellants.

Writ of *Certiorari*

A writ of *certiorari* operates upon an identifiable decision, order or determination. An applicant seeking that relief must place before Court sufficient material to establish the existence, content and legal effect of the decision sought to be quashed. The Court cannot examine the legality of an alleged decision that has neither been produced nor otherwise satisfactorily established.

In the present case, the Appellants sought to quash what they described as a decision made by the 1st Respondent contrary to the recommendations contained in P4. However, they failed to produce the alleged decision or any reliable evidence from which its terms could be ascertained.

P4 contains more than one recommendation. In the absence of the purported decision, the Court could not determine which recommendation was alleged to have been disregarded, the manner in which the 1st Respondent had acted contrary to it, or whether any legally re-viewable decision had, in fact, been made.

A writ of *certiorari* cannot be issued in the abstract. Nor can it be directed against an undefined conduct without the impugned decision being properly identified. The learned High Court Judge was therefore correct in declining to grant *certiorari*.

Writ of Mandamus

A writ of mandamus is not issued as a matter of course. It is a discretionary remedy directed towards securing the performance of a public duty which remains unperformed. An applicant seeking mandamus must establish a legal right to require the performance of that duty and a corresponding public duty on the part of the person against whom the writ is sought.

The material before the High Court indicated that at least some of the recommendations contained in P4 had already been acted upon. The Appellants did not identify with precision the particular duty that remained unperformed or establish that the 1st Respondent had refused to perform such duty.

The Court will not issue mandamus where the act sought to be compelled has already been performed or where the writ would serve no practical purpose. The writ jurisdiction is not exercised merely to pronounce upon an abstract or academic controversy.

The learned High Court Judge cannot therefore be faulted for declining to issue mandamus in the absence of material establishing an existing and unperformed public duty.

Grounds Advanced in Appeal

Although the Appellants assert that the High Court judgment is contrary to accepted legal principles, they do not identify the principles contravened. Similarly, although the

Appellants complain that the learned High Court Judge failed to analyze the facts, evaluate the documents or apply the principles of administrative law, they do not disclose which material facts or documents had been overlooked, or which principles of administrative law were disregarded.

The Court of Appeal is not obliged to examine the entire record in search of specific errors where the grounds of appeal consist only of general assertions. A party seeking appellate intervention must clearly identify the error complained of and demonstrate how it affected the decision under appeal.

Having considered the judgment and the material referred to in the submissions, I am satisfied that the learned High Court Judge had addressed the central deficiencies in the Appellants' case. No error of law, misdirection, failure to consider material evidence or improper exercise of discretion has been established.

Conclusion

For the foregoing reasons, I hold that the Appellants have failed to establish any ground warranting interference with the judgment dated 27.03.2018 delivered by the learned Judge of the Provincial High Court of the Western Province holden in Negombo.

The appeal is accordingly dismissed with costs. Having regard to the circumstances of this case, costs are fixed at Rs. 25,000/-, to be paid by each Appellant separately to Court.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal